

BINARY GLOBAL LIMITED

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Date: 19 September 2023

CIRCULAR**Sub: Announcement of members for Designated Internal Committee on Prevention of Sexual Harassment at Workplace**

In terms of compliance to the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, Founder /Directors at Binary Global Limited have formulated the Internal committee and following Designated members shall look into the matters of POSH compliance at workplace and to take necessary measures for the prevention and redressal of complaints of sexual harassment and the matters connected therewith or incidental thereto. The committee has been constituted in respect of corporate offices and any other establishments of our business.

INTERNAL COMMITTEE

Designation	Name	Contact Details
PRESIDING OFFICER /Chairperson	Ms. Shweta Dheer	8527316789 /shweta.dheer@binaryglobal.com
MEMBER	Ms. Shobha Biswas	9818883345 /shobha.biswas@binaryglobal.com
MEMBER	Ms. Shweta Panwar	9599923679 /shweta.panwar@binaryglobal.com
MEMBER	Mr. Chandra Prakash Sati	9958913479 /chandra.prakash@binaryglobal.com
MEMBER	Mr. Vikas Goyal	9810052148 /admin@binaryglobal.com
EXTERNAL MEMBER	Mr. Jai Gupta (Advocate)	

All concerned are informed that in the event of any sexual harassment at workplace Binary Global Limited the complaint may be lodged in writing to email id of any member of internal committee.

The complaints committee will ensure confidentiality and shall be responsible for Redressal of the complaints made by the victim and ensure time bound treatment of the complaints as provided in the act.

S.S. Dhingra

C.E.O.

Distribution list - All committee members / Email to all employees



Prevention of Sexual Harassment Policy

Title	Description
Name of Policy	Prevention of Sexual Harassment at Workplace
Policy Version	POSH 1.1
Date of Revision	19 th September 2023
Applicable	All employees of Binary Global Limited

Sexual harassment and other discriminatory harassment are illegal and violates our policies. Actions or words of sexual nature that harass or intimidate others are prohibited. Similarly, actions or words that harass or intimidate based on race, colour, religion, gender, sexual orientation, age, national origin, disability, covered veteran status, marital status or any other unlawful basis are also prohibited.

We are POSH compliant and ensure that our basic guidelines cover and protect employees from any type of harassment in the organization's premises, at organization sponsored social events or work-related activities off organization premises and in any setting that relates to work relationships.



Prevention of Sexual Harassment Policy

Sexual Harassment: (POSH)

The subject of Sexual Harassment applies to men and women; to similar and opposite gender relationships; to relationships between supervisors and subordinates; and peer relationships. The employees, customers, vendors, consultants, and anyone else doing business on premises, as well as those involved in activities in which our name is associated, shall comply with this policy.

Definition: "Sexual Harassment" amounts to misconduct in employment and the service rules / regulations governing employment. This includes but not limited to -

- a) Inappropriate electronic mail or SMS text messages, screen savers
- b) Forcible physical touch or molestation.
- c) Demands or Request for sexual favour, either explicitly or implicitly, in return for employment, promotion, examination or evaluation of a person towards any company activity or persistent demands for out of work social activities
- d) Any unwelcome or uncalled for remarks or insinuation, involving verbal, non-verbal, about a person's sexual activities or private life
- e) Eve teasing, innuendos and taunts, physical confinement against one's will and likely to intrude upon one's privacy
- f) Offensive or demeaning comments, questions, jokes and innuendoes and taunts
- g) Gender based insults or sexist remarks
- h) Possession and/or display of erotic or sexually graphic material including posters, photographs, reading matter, objects, pictures, calendars, cartoons, graffiti or messages left on boards or desks
- i) Any act or conduct by a person in authority and belonging to one sex which denies or would deny equal opportunity in pursuit of career development or otherwise making the environment at the workplace hostile and intimidating to a person belonging to the other sex or the same sex, on the ground of sex.

"Employee" means any person on the payroll of the company including trainees, retainers or consultants.

BASIC UNDERSTANDING GUIDELINES

We do not want to create any differentiation of treatment when it comes to sexual harassment complaints. All measures will be taken to avoid, eliminate, prevent and if necessary, initiate action for any act of harassment.

The POSH guidelines below are mandated by government and the Act thereof helps protects and addresses all complaints from women only. Any other complaints shall be processed as per the similar guidelines but the Act cannot be made applicable for the same

The POSH act provides a clear and effective guidelines and mechanism for an effective redressal of a complaint of this nature. Under the Act, every employer needs to constitute either the committee is responsible for:

- Receiving complaints of sexual harassment at the workplace
- Initiating and conducting inquiry as per the established procedure
- Submitting findings and recommendations of inquiries
- Coordinating with the employer in implementing appropriate action
- Maintaining strict confidentiality throughout the process as per established guidelines
- Submitting annual reports in the prescribed format



Prevention of Sexual Harassment Policy

Complaint procedure

In compliance with the Act, if the complainant's warrants formal intervention, the complainant needs to lodge a written complaint, which shall be followed by a formal redressal mechanism as described in this Policy. In case of a verbal complaint, the complaint will be reduced in writing by the receiver of the complaint and signatures of the complainant will be obtained.

All complaints will be investigated promptly, and confidentiality will be protected to the extent possible. A timely resolution of each complaint should be reached and communicated to the parties involved.

It is assuring our employees that the complainant will not be subjected to retaliation or punishment in any way for complaining. Taking the appropriate disciplinary action is a clear sign that such behavior will not be tolerated. At the same time, the POSH Committee should make sure not to unjustly punish the errant. Disciplinary actions may include an oral warning, reassignment or even termination. All such complaints will be taken seriously, and investigations will be carried out thoroughly and discreetly. Both sides will be considered, and suitable action will be taken against proven violators and false accusers. This essentially means that no obstinate action will be taken against someone until a thorough investigation is conducted.

If the investigation confirms conduct that violates this policy has occurred, Binary Global Limited will take immediate, appropriate, corrective action, including discipline, up to and including immediate termination.

No reprisal, retaliation, or other adverse action will be taken against an employee for making a complaint or report of discrimination or harassment or for assisting in the investigation of any such complaint or report. Any suspected retaliation or intimidation should be reported immediately to one of the persons identified above.

Where sexual harassment occurs as a result of an act or omission by any third party or outsider, the company shall take all steps necessary and reasonable, to assist the affected person in terms of support and preventive action. In case the POSH Committee finds the degree of offence coverable under the Indian Penal Code then necessary support and action will be taken.

This policy shall not be used to bring forth frivolous or malicious charges against fellow employees. Strict disciplinary action will be taken against any person bringing a charge of any Harassment in bad faith.

ROLES AND RESPONSIBILITIES:

HR: HR Manager shall be the process owner and ensure education about this policy to all internal employees as well as new joiners. The information regarding this policy shall be shared with all new joiners during induction programs. A register with names and signatures of all the members and date of constitution of the ICC should be maintained in the HR department. The same should be updated on a monthly basis and signed by presiding officer to keep any non-compliance at bay.

Employee: Adherence to the policy and ensure that no inappropriate advantage is taken on the same.

EXCEPTIONS:

This policy is subject to the modifications and no amendment / waiver of any provision of the same is possible unless approved in writing by the MD of the Company.

Sukhdev

Singh

Sukhdev Singh